

Criminal Misc.No.14842-B of 2014

Muhammad Umar etc

The State etc.

09.12.2014 Mr. Muhammd Ameer Khan Niazi and Mr. Burhan Moazzam Malik, Advocates for the petitioners.
Mr. Muhammad Naseem Akhtar, DDPP and Siddique, SI along with record for the State.
Mr. Azam Nazir Tarrar, Advocate for the complainant.

The petitioners seek post arrest bail in case FIR No.34/2013 dated 14.02.2013 under sections 302/324/427/109/148/149 PPC, Police Station Quaidabad, District Khushab.

2. Brief facts of the case as per FIR are that on 26.07.2012, the co-accused of the petitioners namely Abdul Jabbar along with others on the abetment of the petitioners, while armed with their respective weapons committed murderous assault upon the complainant party and resultantly Fateh Khan, Ghulam Abbas and Muhammad Nawaz succumbed to the fire arm injury at the spot.

3. Arguments heard and record perused.

4. From the perusal of the record, it is observed that the allegation against the petitioners is merely of abetment. Admittedly, the petitioners were not present at the spot and story of abetment mentioned in the FIR needed further inquiry. It is admitted fact that no body could make conspiracy in the manner that it should be

known to others especially to the relative or near one of the complainant or the deceased. It is noted that both the prosecution witnesses namely Muhammad Bukhsh and Karim Nawaz were not present at the spot and had not seen the occurrence, which had taken place on 14.02.2013 at 12:15 noon. From the contents of the FIR, it reveals that the complainant had not mentioned that when he came to know about the conspiracy made by the petitioners and when above stated prosecution witnesses informed him about the said fact. It is also noted that Muhammad Bukhsh and Karim Nawaz had not stated a single word regarding the fact that when did they inform the complainant or any one else regarding conspiracy made by the petitioners. The chain is not intact, which connects hearing of the conspiracy and informing the fact to the complainant. Besides both the prosecution witnesses were close relative of the complainant, which makes the case of the petitioners one of further inquiry. It is also admitted fact that the petitioners have been found innocent during the investigation as no solid evidence was collected against them by the first Investigating Officer and their names were placed in the column No.2 of the report under section 173 Cr.P.C. On the other hand learned Law Officer after perusing the record submits that though the petitioners have been found innocent by first I.O but in subsequent two investigations the petitioners were found guilty for the offence of abetment. Obviously there are three different findings by the Investigation Officers regarding innocent and guilt of the petitioner and fact remains that Ist Investigation Officer placed the names of the petitioners in column No.2 of the Challan. It is observed that complainant had strong motive for involvement of the petitioners in the

instant case as the petitioner No.1-Muhammad Umer is paternal uncle of deceased Abdul Waqar and Aamir Khurshid, whereas petitioner No.2-Khurshid Ahmad is real father of deceased Aamir Khurshid and brother of Khurshid Ahmad namely Abdul Jabbar got lodged criminal case regarding murder of Abdul Waqar and Aamir Khurshid against the complainant party through FIR No.205 dated 26.7.2012 under sections 302/109/148/149 PPC P.S Quaid Abad, District Khushab. Coupled with the fact that the FIR and statements of both the above stated prosecution witnesses is silent about the fact that how the complainant comes to know about the fact that the petitioners have abated the offence, which makes the case of the petitioners one of further inquiry. I am of the opinion in the circumstances that the question of abetment needs further probe. The petitioners are behind the bars since their arrest and their further incarceration in the Jail for indefinite period would not serve any useful purpose. Moreover, the bail cannot be withheld as punishment merely for the reasons that the accused are involved in the case of double murder.

5. For the reasons supra, the petition is accepted and the petitioners are admitted to bail subject to their furnishing bail bonds in the sum of Rs.2,00,000/- each with two sureties each in the like amount to the satisfaction of the learned trial court.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

**Tariq*